

August 31, 2026  
Dept. 9  
Probate Tentative Rulings

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|-------------------------|-----------------|------------------------------------|
| <b>16.</b>              | <b>21PR0038</b> | <b>ESTATE OF DAN'L G. ROEDIGER</b> |
| <b>PETITION HEARING</b> |                 |                                    |

On July 29, 2026, Petitioner, Tina Roediger-Chaney ("Petitioner"), filed a Petition for Preliminary Distribution. A Notice of Hearing was filed on July 30, 2026. An Opposition was filed by Administrator, Teri C. Petersen ("Administrator") on August 20, 2026. Petitioner filed a Reply on August 24, 2026.

Petitioner seeks a preliminary distribution of \$250,000.00 in cash from the Estate to enable Petitioner to secure permanent housing where she intends to reside during an anticipated year-long recovery from urgently needed back and hip surgery. Petitioner contends pursuant to the Administrator's Corrected Inventory and Appraisal filed on April 8, 2025, the Estate was valued at more than \$1,000,000.00 as of Decedent's date of death. The Estate's assets include a Town of Cool Promissory Note that generates monthly payments of \$3,057.36, which is sufficient to fund the requested preliminary distribution.

Administrator argues the Petition should be denied because the Estate does not presently have \$250,000.00 in liquid assets available for distribution, the Estate's First and Final Account and Report of Administration has not yet been completed, and the substantial majority of the Estate's assets are non-liquid, consisting primarily of real property interests and promissory notes.

Administrator asserts that the Corrected Final Inventory and Appraisal contained material valuation errors, and an Amended Corrected Final Inventory and Appraisal has been completed and submitted to the Probate Referee for appraisal. The Town of Cool and Madrone Drive Promissory Notes were overstated by approximately \$204,467.05. Should the Court not be inclined to deny the Petition outright, Administrator requests the preliminary distribution be deferred until the Probate Referee has completed the appraisal of the Amended Corrected Final Inventory and Appraisal and Administrator has completed and filed the First and Final Account and Report of Administration, so the Court has accurate information concerning the Estate's assets, expenses, financial condition, liquidity, and amounts available for distribution.

As Administrator has placed the Estate's liquidity at issue, Petitioner further requests the Court require Administrator to disclose the Estate's current cash position, liquid assets, and outstanding liabilities at the hearing so that the Court may determine, based upon competent evidence, whether the requested distribution may be made without injury to the Estate or any interested person pursuant to Probate Code section 11621.

**TENTATIVE RULING #16:**

**APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, AUGUST 31, 2026, IN DEPARTMENT NINE.**

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**IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.**